



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

[HB 2167](#): attorney general; nuisance action; damages

DIAZ FLOOR AMENDMENT

Extends the imposed liability on the Attorney General for damages resulting from public nuisance actions to include damages resulting from *consumer fraud actions*, subject to the same conditions.

DIAZ FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2167
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 41, chapter 1, article 5, Arizona Revised
3 Statutes, is amended by adding section 41-197, to read:

4 41-197. Nuisance actions; consumer fraud actions; damages;
5 civil penalty

6 A. IF THE ATTORNEY GENERAL FILES A PUBLIC NUISANCE ACTION [OR A
7 CONSUMER FRAUD ACTION], THE ATTORNEY GENERAL IS LIABLE FOR DAMAGES TO ANY
8 PERSON WHO IS INJURED BY THE ACTION IF BOTH OF THE FOLLOWING APPLY:

9 1. THE NUISANCE ACTION [OR CONSUMER FRAUD ACTION] IS EITHER:

10 (a) DISMISSED BY THE COURT.

11 (b) FOUND TO NOT HAVE MERIT.

12 2. THE ATTORNEY GENERAL EITHER:

13 (a) KNEW OR SHOULD HAVE KNOWN THAT THE NUISANCE ACTION [OR CONSUMER
14 FRAUD ACTION] LACKED A SUFFICIENT LEGAL OR FACTUAL BASIS.

15 (b) PUBLICIZED THE FILING OF THE NUISANCE ACTION [OR CONSUMER FRAUD
16 ACTION].

17 B. DAMAGES THAT ARE AWARDED UNDER THIS SECTION SHALL INCLUDE
18 REASONABLE ATTORNEY FEES AND THE COSTS OF THE LITIGATION. THE ATTORNEY
19 GENERAL SHALL PAY A CIVIL PENALTY THAT IS THREE TIMES THE AMOUNT OF ANY

1 DAMAGES THAT THE DEFENDANT HAS SUFFERED AS A RESULT OF THE NUISANCE ACTION
2 [OR CONSUMER FRAUD ACTION]. IF THE DEFENDANT IS A BUSINESS, THE DAMAGES
3 MAY INCLUDE LOST SALES AND BUSINESS, LOST PROFITS AND LOSS IN VALUE OF THE
4 BUSINESS.

5 C. THE ATTORNEY GENERAL SHALL PAY ANY DAMAGES AND CIVIL PENALTY
6 AWARDED UNDER THIS SECTION FROM MONIES IN THE ATTORNEY GENERAL'S GENERAL
7 OPERATING FUND.

8 Enroll and engross to conform

9 Amend title to conform

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